

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Squad #07	CCRB Case #: 201700912	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Sunday, 01/29/2017 5:45 PM	Location of Incident: McKinley Park	18 Mo. SOL 7/29/2018	Precinct: 68
Date/Time CV Reported Sun, 01/29/2017 6:11 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/03/2017 11:01 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Power	16386	956180	068 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Justin Douglas	29998	956610	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Power	Off. Language: Police Officer Joseph Power made remarks to § 87(2)(b) based upon his ethnicity.	A . Unsubstantiated
B . POM Joseph Power	Discourtesy: Police Officer Joseph Power spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Joseph Power	Abuse: Police Officer Joseph Power threatened to arrest § 87(2)(b)	C . Exonerated

Case Summary

On January 29, 2017, § 87(2)(b) filed this complaint with IAB. IAB log number 17-3919 was generated, and the case was received at the CCRB on February 3, 2017.

On January 29, 2017, at approximately 5:45 p.m., § 87(2)(b) § 87(2)(b) contacted 911 on behalf of an unidentified female, who reported her purse was stolen while she was inside of McKinley Park, in Brooklyn. PO Joseph Power and PO Justin Douglas from the 68th Precinct arrived at the location and spoke to § 87(2)(b). During the conversation, PO Power allegedly said, “I guess the lady is Jewish because you are Jewish. You people always call the Community Patrol. I worked in the 71 in Crown Heights, and they do the same shit over there. You guys do your own shit” (**Allegations A and B**). PO Power then allegedly told § 87(2)(b) that they would arrest him if he did not leave the park (**Allegation C**). § 87(2)(b) was not issued any summonses or arrested as a result of this incident.

There is no video evidence for this case.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined mediation.
- As of March 21, 2017, § 87(2)(b) has not filed a Notice of Claim (Board Review 2).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 1).
- PO Power has been a member of service for three years and has been the subject of three allegations stemming from one case, none of which were substantiated § 87(2)(g)

Findings and Recommendations

Allegation A- Offensive Language- Police Officer Joseph Power made remarks to § 87(2)(b) based upon his ethnicity.

Allegation B- Discourtesy- Police Officer Joseph Power spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) placed a 911 call on behalf of an unidentified female regarding her stolen purse and that PO Power and PO Douglas responded to the location.

§ 87(2)(b) stated that § 87(2)(b) PO Power said, “I guess the lady is Jewish because you are Jewish. You people always call the Community Patrol. I worked in the 71 in Crown Heights, and they do the same shit over there.” PO Power also said, “You guys do your own shit. The Jewish community calls you guys.” § 87(2)(b) § 87(2)(b) believed that PO Power’s remarks were referring to his Jewish ethnicity. § 87(2)(b) denied that PO Power used any other profanity aside from the word “shit” (Board Review 4). There were no other civilian witnesses to this incident, as the unidentified female remained inside of her vehicle.

PO Power stated that when he questioned § 87(2)(b) about the unidentified female victim, § 87(2)(b) would not disclose her whereabouts. While speaking to § 87(2)(b) PO Power heard § 87(2)(b)'s radio. At this point, PO Power asked him if he was a part of § 87(2)(b). PO Power acknowledged that § 87(2)(b) is in predominately Jewish areas, but he denied that he made a comment referring to “you people” and denied that he made any comments about § 87(2)(b)'s ethnicity. PO Power also denied that there was any conversation where he referred to the unidentified female or § 87(2)(b) as being Jewish. PO Power denied that he said, “You are Jewish, so then the lady is Jewish?” However, PO Power did not recall whether he used the word “shit” while speaking to § 87(2)(b) (Board Review 5 and 6).

PO Douglas stated that he and PO Power asked § 87(2)(b) more than once to divulge the location of the unidentified female victim so that they could speak with her and take her report. § 87(2)(b) only told PO Douglas and Power that the victim “was around.” At this point, PO Douglas and PO Power walked away from § 87(2)(b) and they had no additional conversation with him. PO Douglas did not know if § 87(2)(b) was part of § 87(2)(b) and denied knowing what that was. PO Douglas did not hear PO Power say, “They do the same shit over there” or saying, “I guess the lady is Jewish because you are Jewish. You people always call the community patrol and don’t call the police.” PO Douglas denied that PO Power referred to anyone as being Jewish or that he referred to § 87(2)(b)'s ethnicity. PO Douglas denied hearing PO Power use the word “shit” (Board Review 7 and 8).

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Therefore, it is recommended that **Allegations A and B** be closed as **Unsubstantiated**.

Allegation C- Abuse of Authority- Police Officer Joseph Power threatened to arrest § 87(2)(b)

It is undisputed that § 87(2)(b) was in the park after 5:45 p.m. It is also undisputed that PO Power told § 87(2)(b) that he had to leave the park and § 87(2)(b) complied.

§ 87(2)(b) stated that PO Power told him that he had to leave the park or he would arrest him. However, PO Power did not provide § 87(2)(b) with a reason as to why he would be arrested (Board Review 4).

PO Power stated that no one else was in the park at the time he had asked § 87(2)(b) to leave the park. PO Power denied that he threatened to arrest § 87(2)(b) and only stated to him that the park’s rules and regulations are that the park closes at dusk and he was using his discretion not to issue him a summons or arrest him. § 87(2)(b) replied, “Arrest me. Arrest me.” PO Power then said, “I don’t think you want to go down that route” (Board Review 5 and 6).

PO Douglas did not hear a conversation in which § 87(2)(b) was told he could be arrested, but he acknowledged that since it was already dark at the time of this incident, the park was closed. PO Douglas also stated that are posted signs in the park which note that the park closes at dusk (Board Review 7 and 8).

According to the NYC Parks and Recreation staff at McKinley Park, McKinley Park closes at dusk and there are clearly posted park signs that reflect this rule (see IAs). According to the Time and Date website, on January 29, 2017, the sun set occurred at 5:10 p.m. (Board Review 16)

“An individual may be arrested for an offense when an officer has reasonable cause to believe that such person committed an offense in their presence.” N.Y.S. Criminal Procedure Law, Section 140.10 (Board Review 9) For some crimes and petty offenses, an officer may issue a person an appearance ticket when he has reasonable cause to believe that the person has committed a crime or a petty offense in his presence. N.Y.S. Criminal Procedure Law, Section 150.20 (Board Review 10). “A person may enter and use the park from 6:00 a.m. until 1:00 a.m. unless other open hours are posted.” NYC Parks General Provisions, Section 1-03(a) (Board Review 10).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation C** be closed as **Exonerated**.

Squad:

Investigator:	_____	<u>Daniel Cooper</u>	_____
	Signature	Print	Date
Squad Leader:	_____	<u>Diana Townsend</u>	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date